

Notice from the National Commission for Data Protection regarding Bill No. 8253 on accommodation registers and concerning: 1° amendment of the amended law of July 5, 2016, reorganizing the State Intelligence Service; 2° amendment of the amended law of July 18, 2018, on the Grand Ducal Police; and 3° repeal of the amended law of June 24, 2008, concerning the control of travelers in accommodation establishments

Deliberation No. 20/AV8/2024 of March 29, 2024

1. In accordance with Article 57.1.e) of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) (hereinafter referred to as the "GDPR"), to which Article 7 of the law of August 1, 2018, organizing the National Commission for Data Protection and the general regime on data protection refers, the National Commission for Data Protection (hereinafter referred to as the "National Commission" or the "CNPD") "advises, in accordance with the law of the Member State, the national parliament, the government, and other institutions and bodies regarding legislative and administrative measures relating to the protection of the rights and freedoms of natural persons with regard to processing."

Article 36.4 of the GDPR states that "[m]ember states consult the supervisory authority in the context of the preparation of a legislative proposal to be adopted by a national parliament, or a regulatory measure based on such a legislative measure, which relates to processing."

2. Furthermore, in accordance with Article 8.3° of the aforementioned law of August 1, 2018, transposing into national law Article 46.1.e) of Directive (EU) 2016/680 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data by competent authorities for the purposes of the prevention, investigation, detection, or prosecution of criminal offenses, or the execution of criminal sanctions, and on the free movement of such data, and repealing Framework Decision 2008/977/JHA of the Council, the CNPD "advises the Chamber of Deputies, the Government, and other institutions and bodies regarding legislative and administrative measures relating to the protection of the rights and freedoms of natural persons with regard to the processing of personal data."

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regarding Bill No. 8253 on accommodation registers and concerning: 1° amendment of the amended law of July 5, 2016, reorganizing the State Intelligence Service; 2° amendment of the amended law of July 18, 2018, on the Grand Ducal Police; and 3° repeal of the amended law of June 24, 2008, concerning the control of travelers in accommodation establishments.

3. By letter dated June 16, 2023, the Minister of Tourism invited the National Commission to express its opinion on the draft law concerning accommodation registers and comprising: 1° amendment of the amended law of July 5, 2016, concerning the reorganization of the State Intelligence Service; 2° amendment of the amended law of July 18, 2018, on the Grand Ducal Police; and 3° repeal of the amended law of June 24, 2008, concerning the control of travelers in accommodation establishments (hereinafter referred to as the "draft law").

4. It appears from the explanatory memorandum that the draft law under review aims to replace the law of June 24, 2008, concerning the control of travelers in accommodation establishments, a system established in 1929 and which has undergone several adaptations since. The proposed amendments, stemming from the recommendations of a working group composed of representatives from various entities such as the Directorate General of Tourism, the Ministry of Internal Security, the Grand Ducal Police, and the CTIE, aim to increase the efficiency of the current system both for operators, meaning any natural or legal person providing, for a fee, accommodation services, and for the recipients of this data, which are the Grand Ducal Police and the National Institute of Statistics and Economic Studies of the Grand Duchy of Luxembourg (hereinafter referred to as "STATEC"). The CNPD includes a

commentary on the articles related to Article 1 of the draft law, which explains that "It does not matter, with regard to this law, whether the person carries out this activity habitually or not and whether or not they are required to have an establishment authorization. Thus, the obligations imposed by this law also apply to persons who, under the new provisions regarding establishments (draft law No. 7989), would not be required to hold an establishment authorization due to the fact that their activity falls below the threshold at which such authorization is required," and that natural persons who rent, even occasionally, their private accommodation through an online commercial platform must comply with the provisions of the draft law under review.

5. The National Commission has taken note of the submission of a draft Grand Ducal regulation concerning the repeal of the Grand Ducal regulation of August 5, 2015, relating to the registers to be maintained by lessors operating a tourist accommodation service. The latter was enacted to implement the aforementioned law of June 24, 2008, in order to specify the modalities and deadlines for the communication of accommodation registers and data, as well as the model of these registers, the information to be provided therein, the method of their preservation, and the processing of data by the Grand Ducal Police. All these issues are now addressed by the draft law under review.

6. The National Commission will express in this opinion its observations regarding the issues related to the protection of personal data raised by the draft law.

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I.

Preliminary Remarks

7. Current legislation requires anyone who hosts a person in a collective accommodation establishment or private tourist accommodation to complete or have completed a form containing certain information about the hosted individuals and to transmit it to certain authorities.

8. The accommodation form system aims to satisfy a dual purpose. Under Article 45 of the Convention implementing the Schengen Agreement (hereinafter referred to as the "CISA"), Luxembourg is obliged to take measures to ensure that foreigners, nationals of the European Union and third countries, who are hosted in a tourist accommodation establishment complete and sign a declaration form and prove their identity. Furthermore, Luxembourg is required by Regulation (EU) No. 692/2011 of the European Parliament and of the Council of July 6, 2011, concerning European statistics on tourism and repealing Council Directive 95/57/EC to provide the statistical office of the European Commission (EUROSTAT) with statistics on the occupancy of accommodation establishments. Therefore, the establishment and transmission of accommodation forms to the respective authorities cover both security and statistical purposes.

9. Regarding the security aspect, the National Commission notes that the draft law under review provides for a non-targeted transmission of accommodation forms for each traveler and for each stay by the operator to the Grand Ducal Police. This systematic and generalized transmission results in a massive centralization of personal data with the Grand Ducal Police, which raises significant questions regarding the right to data protection as enshrined both in Article 31 of the Constitution and in supranational texts. In this context, it should be emphasized that automatic transmission of travelers' personal data by the operator to police services has been abolished in all our neighboring countries. Indeed, neither Germany, nor France, nor Belgium currently has a systematic and generalized transmission of data of all travelers to police services. On the other hand, the aforementioned legal orders provide for the retention of accommodation forms by the operator itself for a specified period. If requested, the operator or their representative must make the recorded data available to police officers so that verification is possible. Furthermore, France has limited access to the data by requiring police

officers to base their request on one of the three legal grounds provided for by the Code on the Entry and Stay of Foreigners and Asylum Law, namely for the purposes of

1 See Article 8 of the Convention for the Protection of Human Rights and Fundamental Freedoms and Articles 7 and 8 of the Charter of Fundamental Rights of the European Union.

2 In Germany see §§29 to 31 of the Federal Registration Act (BMG) of May 3, 2013; in France see Articles R.814-1 to R.814-3 of the Code on the Entry and Stay of Foreigners and Asylum Law; in Belgium see Articles 141 to 146 of the Law of March 1, 2007, containing various provisions.

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Prevention of public order disturbances, judicial investigations, and research in the interest of individuals.

10. It must be noted that the system of accommodation records in the Grand Duchy of Luxembourg is much more extensive and intrusive than that of its neighboring countries, and that the centralization of personal data with the Grand Ducal Police constitutes a specificity compared to other countries. The National Commission will have the opportunity to revisit this essential aspect in the continuation of this opinion.

****II. The responsible parties for the various processing activities****

11. It is important to recall that the notion of the data controller plays a significant role in data protection. Firstly, the determination of the data controller can have implications for the applicable legal regime. Indeed, data processing carried out for criminal or security purposes by competent authorities, such as the Grand Ducal Police or the State Intelligence Service (hereinafter referred to as the "SRE"), is subject to the law of August 1, 2018, concerning the protection of natural persons with regard to the processing of personal data in criminal matters as well as in matters of national security, while other processing activities, such as those carried out by operators or STATEC, fall under the common law regime, namely the GDPR. Secondly, the determination of the data controller allows for the identification of which entity is responsible for the various rules regarding data protection as well as how the concerned individuals can exercise their rights.

12. Under Articles 3 and 6 of the draft law, it is the responsibility of the operator to establish the accommodation records and to transmit to the Grand Ducal Police as well as to STATEC the personal data listed in the respective applicable annexes. It follows that the operator is the data controller for the collection and subsequent transmission of travelers' data, through the accommodation records, to the Grand Ducal Police and to STATEC. Similarly, STATEC, the Grand Ducal Police, and the SRE are to be considered as responsible for the processing activities they carry out subsequently.

13. Consequently, the CNPD can align itself with the developments made by the authors in the commentary on Article 6, according to which the different actors are not joint controllers of personal data processing but independent and successive controllers.

3 Article R.814-1 and following of the Code on the entry and stay of foreigners and the right of asylum.

4 See in this regard: European Data Protection Board (EDPB), Guidelines 07/2020 on the concepts of controller and processor in the GDPR, point 3, available at: https://edpb.europa.eu/our-work-tools/our-documents/guidelines/guidelines-072020-concepts-controller-and-processor-adpr_fr.

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Grand Ducal Police; and 3° repeal of the amended law of June 24, 2008, concerning the control of travelers in accommodation establishments.**

III.

The collection of data by operators

14. The bill under review establishes a legal obligation for operators to process a certain number of personal data. Thus, the collection of personal data from travelers by operators finds its legal basis in Article 6.1(e) of the GDPR, under which processing is lawful if it is "necessary for compliance with a legal obligation to which the data controller is subject." In this case, Article 6.3 of the GDPR provides a specific constraint related to the lawfulness of processing, in that the basis and purposes of the processing must be defined either by Union law or by national law. Furthermore, this legal basis must pursue a public interest objective and be proportionate to the legitimate aim pursued.

15. It follows from Article 6.3 as well as Recital 45 of the GDPR that the legal basis may contain specific provisions aimed, among other things, at determining the data controller, the data subjects, the categories of data being processed, and the retention period.

1. The operator as the data controller

16. As outlined in points 11 to 13 of this opinion, operators are to be considered as responsible for the processing related to the collection and transmission of personal data from travelers. Thus, compliance with the principles set out in Article 5 of the GDPR is imposed on operators as data controllers. This opinion will focus more specifically on the principles of transparency, on the one hand, and the principle of integrity and confidentiality, on the other.

A. The principle of transparency

17. The principle of transparency is enshrined in Article 5.1(a), while Articles 12 to 14 of the GDPR outline the practical requirements regarding the information of data subjects. Thus, the information referred to in Article 13 of the GDPR must be provided by the data controller, that is to say, the operator, at the time of data collection in a concise, transparent, comprehensible, and easily accessible manner. The requirement of comprehensibility implies that this information should be accessible to the majority of the targeted public, and therefore a translation into one or more languages should be provided if the individuals targeted by the data controller speak other languages.

18. Furthermore, Article 13.1(e) of the GDPR requires data controllers to provide data subjects with information regarding the recipients or categories of recipients of the data.

5 Article 12.1 of the GDPR.

6 Article 29 Working Party, Guidelines on Transparency under Regulation (EU) 2016/679, Revised and adopted on April 11, 2018, points 9 et seq.

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****Recipients of Personal Data.**** In this case, individuals must be informed that their personal data is processed by the Grand Ducal Police and, where applicable, by STATEC, in accordance with the explanations provided under points 36 and following of this notice. To ensure complete and uniform information for all concerned individuals, it may be useful for the relevant ministry to provide templates for information notices that can be used by all operators.

****B. The Role of the CTIE Regarding the Principle of Integrity and Confidentiality****

19. The commentary on Article 6 of this draft law specifies that "the transfer of data and information from the operator to the competent authorities is carried out through the IT solution hosted by the CTIE, which, in terms of the General Data Protection Regulation, will have the status of a processor for the operators and the Police." However, the qualification retained by the authors of the draft law raises several observations from the CNPD.

20. First of all, it should be recalled that Article 4.8 of the GDPR defines the processor as "the natural or legal person, public authority, service, or other body that processes personal data on behalf of the controller." However, it follows from Article 1.6 of the draft law that the IT solution is hosted within the infrastructure of the CTIE on behalf of the Minister responsible for Tourism. This wording suggests that the CTIE would act as a processor for the Minister, whereas, according to the understanding of the CNPD, the latter does not intervene within the framework of the system provided for by the draft law. The National Commission believes that the explanations contained in this regard in the commentary on Article 1 do not provide the necessary clarifications.

21. Furthermore, in accordance with Article 28.3 of the GDPR, processing by a processor must be governed by a contract or another legal act under Union law or the law of a Member State, concluded between the controller and the processor, which must contain certain clauses. Thus, the qualification of processor has the consequence that operators must conclude a processing agreement with the CTIE in the sense of Article 28.3 of the GDPR. However, the conclusion of such a contract does not affect the responsibility of the operators regarding data protection. The CNPD reminds that the operator, as the controller, remains responsible for implementing appropriate technical and organizational measures to ensure that the processing is carried out in accordance with the GDPR (Article 24) and must be able to demonstrate this. Therefore, the National Commission questions whether the qualification of the various actors, as envisaged by the authors of the draft law, is adapted to the reality of the activities actually carried out. For example, it seems hardly conceivable that operators would give...

****European Data Protection Board (EDPB), Guidelines 07/2020 on the concepts of controller and processor in the GDPR, Point 41, available at:**** https://edpb.europa.eu/our-work-tools/our-documents/guidelines/guidelines-072020-concepts-controller-and-processor_en.

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any instruction to the CTIE such that it raises the question of whether the qualification of responsible (joint) data controller would be more appropriate in this case.

2. The Data Subjects

22. The current system provides that a lodging form must be completed by each traveler, with the exception of the person accompanying the traveler and children under the age of 15 who are included on the same form. Furthermore, Article 1 of the law of June 24, 2008, concerning the control of travelers in accommodation establishments, as well as the implementing regulation, which has been in force since August 14, 2015, only requires, for persons traveling in groups, the obligation to establish a form for the main traveler and to indicate on this form the number of accompanying travelers. Consequently, no personal data concerning the "accompanying" persons is transmitted to the Grand Ducal Police.

23. The authors of the bill under review now wish to impose on operators the obligation to establish a lodging form for each client aged 15 or older and for each stay of the client. The CNPD takes note of the authors' explanations regarding the reasons for wanting to expand the circle of concerned persons. According to their explanations, the current system would be ineffective in that the Police do not receive any information about the identity of the various members of a group, and it is not easy for the operator, when several people present themselves at their establishment without being part of an organized trip, to determine who is the "main" traveler whose data they are supposed to record and who the accompanying persons are.

24. At the European level, Article 45.1.a) of the CAAS explicitly excludes spouses or minors

accompanying the main traveler or members of travel groups from the obligation to complete a lodging form. Thus, the National Commission wonders whether it is really necessary to expand the circle of concerned persons in light of the aforementioned provision.

25. Furthermore, Article 1.5° of the bill under review defines a traveler as "any person aged 15 or older who stays in tourist accommodation for a duration not exceeding three consecutive months." As a result, minors aged fifteen to eighteen are required to complete a lodging form for each stay in tourist accommodation, and their personal data is also transmitted to the Grand Ducal Police. Considering that these are vulnerable persons, the CNPD finds the generalized and systematic transmission to the Grand Ducal Police to be all the more problematic. It should be noted that regarding the processing of personal data in criminal matters, "measures taken by the data controller should include the restoration and implementation of specific safeguards intended for the processing of personal data."

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****Personal data concerning vulnerable individuals such as children**.**⁸

26. Furthermore, the bill under review does not, unlike France, make any distinction between a traveler of foreign nationality and one of Luxembourg nationality. Thus, the National Commission questions the obligation to fill out accommodation forms for Luxembourg citizens as well. Once again, it should be emphasized that Article 45 of the CAAS only provides for a declaration obligation for foreign nationals accommodated in a lodging establishment. It should be noted that in Germany, a bill has recently been submitted by the Minister of Justice, which aims in its Article 6 to abolish the obligation to fill out accommodation forms for German nationals, which represents, according to the authors of this bill, an important measure to reduce the administrative burden on operators.⁹

****3. Categories of Data****

27. Travelers must provide on the accommodation form the personal information specified in Annex 1 of this bill. The National Commission understands that this includes, in particular, the number of the identification document presented by the traveler. According to Article 5.2 of the bill under review, the operator is obliged to verify the data submitted to them based on the traveler's identity card or passport. For this purpose, the operator may request the traveler to present an identification document solely for the purpose of verifying the information provided by them. This is an obligation that is also provided for by Article 45.1.a) of the CAAS. The National Commission wishes to emphasize that operators are rightly entitled to request an identification document to verify the traveler's data, but they do not have the right to make a copy of the document presented, in accordance with the principle of minimization provided in Article 5.1.e) of the GDPR, which stipulates that data collection must be limited to what is necessary for the purposes for which it is processed.

****4. Retention Period****

28. Currently, accommodation operators have an obligation to retain travelers' accommodation forms for a period of twelve months.¹⁰ The bill under review

8 Recital (50) of Directive (EU) 2016/680 of the European Parliament and of the Council of April 27, 2016, on the protection of individuals with regard to the processing of personal data by competent authorities for the purposes of the prevention, investigation, detection, or prosecution of criminal offenses, and the execution of criminal penalties, and on the free movement of such data, and repealing Framework Decision 2008/977/JHA of the Council (LED).

9 Draft of a Fourth Law to Relieve Citizens, Businesses, and the Administration from Bureaucracy (BEG IV-E), 2024.

10 Article 4 of the law of June 24, 2008, concerning the control of travelers in lodging establishments.

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reduces the retention period by stipulating that all accommodation records, regardless of the medium, must be retained for a period of six months and must be deleted at the end of this period. The National Commission welcomes this reduction in the retention period and reminds that under the principle of data minimization established in Article 5.1.e) of the GDPR, personal data should not be retained longer than necessary for the purposes for which they are collected or processed.

IV.

Transmission of data to the Grand-Ducal Police

29. According to the explanatory memorandum, one of the main reasons for the proposed reform lies in the fact that the current retention period of seventy-two hours, during which the Grand-Ducal Police can retain data transmitted by operators, is deemed too short. Thus, any investigation into a suspect who later appears in a judicial file would be impossible, meaning that the use of this tool is almost exclusively limited to the search for reported persons. The authors of the draft law argue that the Grand Duchy of Luxembourg could in the future be increasingly used as a meeting place prior to the preparation of a terrorist attack or to facilitate escape, and consequently propose to extend the retention period to six months. However, the National Commission notes that the centralization of data with the Grand-Ducal Police as provided for in the draft law under review, and as it currently exists, represents a singularity compared to our neighboring countries.

30. Indeed, there is currently a hybrid system in the Grand Duchy of Luxembourg. The data from the accommodation records of all travelers must be transmitted within a maximum period of twelve hours by the operators to the Grand-Ducal Police, while the originals of the accommodation records are retained by the operator themselves. In this second scenario, these records must be presented upon any request by the agents of the Grand-Ducal Police. Therefore, the draft law under review explicitly provides in its Article 8.1 that "the originals of the accommodation records established on paper must be retained by the operator for a period of six months and must be presented upon any request from the Grand-Ducal Police." Thus, the authors of the draft law now wish to give police officers the possibility to requisition the accommodation records from the operator for a period of six months, which represents the common procedure in our neighboring countries.

31. Considering that the draft law under review provides for the possibility of requisitioning the accommodation records from the operator, the National Commission

11 See points 9 and following of this opinion.

12 Article 5 of the law of June 24, 2008 concerning the control of travelers in accommodation establishments.

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questions the necessity of the automatic transmission of data to the Grand-Ducal Police. In its opinion dated December 12, 2023, the Council of State formally opposes this systematic and generalized transmission of data leading to massive and non-targeted surveillance. The CNPD aligns itself with the observations of the Council of State, stating that a non-targeted transmission of data concerning all travelers who are accommodated within the territory of the Grand Duchy to the Grand-Ducal Police constitutes a disproportionate interference with the right to privacy and the right to the protection of personal data of the individuals concerned, as enshrined in Articles 20 and 31 of the Constitution,

Article 8 of the Convention for the Protection of Human Rights and Fundamental Freedoms, Articles 7 and 8 of the Charter of Fundamental Rights of the European Union, and Article 5 of the GDPR.

The transmission of all accommodation records to the Grand-Ducal Police and the creation of a database, as provided for by the new Article 43sex/es of the amended law of July 18, 2018, concerning the Grand-Ducal Police, thus leads to disproportionate surveillance of the individuals concerned. European case law considers the generalized and indiscriminate retention of data relating to the location of individuals as incompatible with Articles 7 and 8 as well as Article 52.1 of the Charter of Fundamental Rights of the European Union. In this regard, the National Commission wishes to remind that, in accordance with the consistent case law of the Court of Justice of the European Union (hereinafter "CJEU"), exceptions to the protection of personal data and limitations thereof must operate within the strict limits of necessity. According to the CJEU, even a general interest objective cannot be pursued without taking into account the fact that it must be reconciled with the fundamental rights affected by the measure.

32. The National Commission notes that the systematic and generalized transmission of accommodation records, carried out under the currently applicable law, namely the amended law of June 24, 2008, concerning the control of travelers in accommodation establishments, risks being contrary to Article 5 of the GDPR, to Articles 7 and 8 as well as to Article 52.1 of the Charter of Fundamental Rights of the European Union and to Articles 20 and 31 of the Constitution for the same reasons stated in paragraph 32 of this opinion.

33. Thus, the National Commission joins the opinion of the Council of State and invites the authors of the draft law to reformulate the provisions by referring to the models of the legislation of our neighboring countries, which require operators to retain accommodation records for a specified period and to make them available to the Police only upon request.

13 Opinion of the Council of State dated December 12, 2023, doc. pari. no. 8253/02 p. 4.

14 CJEU, judgment of December 21, 2016, *Tele2 Sverige and Watson et al.*, C-203/15 and C-698/15, EU:C:2016:970, paragraphs 50 et seq.

15 CJEU, judgment of October 6, 2020, *La Quadrature du Net et al.*, C-511/18, C-512/18 and C-520/18, EU:C:2020:791, paragraph 130.

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34. Furthermore, the National Commission notes that the draft law under review provides in its Article 10 that the SRE may request the Grand Ducal Police to communicate the personal information and data that have been transmitted to it based on the accommodation forms and which are stored in its database. Access by the SRE is only authorized if its request is based on one of the grounds listed in the law, namely "for one or more facts related to activities of terrorism, espionage, proliferation of weapons of mass destruction or products related to defense and associated technologies, or cyber threats insofar as they are linked to the aforementioned activities." The National Commission believes that this constitutes indirect access by the SRE to the data transmitted to the Grand Ducal Police and refers to the developments under points 32 and following of this opinion.

V.

Transmission of Data to STATEC

35. In order to develop reliable statistical data to record and study the evolution of tourist flows and/or to study the economic competitiveness of the tourism sector, the operator is obliged to transmit to STATEC, for each traveler and each stay, the information listed in Annex II of the draft law under

review. As mentioned above, Article 9 of Regulation (EU) 692/2011 of the European Parliament and of the Council of July 6, 2011, concerning statistics on tourism and repealing Council Directive 95/57/EC, obliges Member States to provide the statistical office of the European Commission (EUROSTAT) with various statistics on the occupancy of accommodation establishments within their territory.

36. From the commentary on Article 6 of the draft law under review, it appears that "(...) insofar as STATEC does not receive any personal data, the processing of the information received is not subject to data protection legislation." The authors of the draft law consider that the data transmitted to STATEC constitutes anonymized data whose processing is not subject to the GDPR regime. The CNPD must express reservations regarding this reasoning. Indeed, Recital (26) of the GDPR specifies that there is no need to apply the principles relating to data protection to anonymous information, namely information that does not relate to an identified or identifiable natural person, nor to personal data rendered anonymous in such a way that the data subject is not or no longer identifiable. However, the National Commission believes that in this case, a combination of the postal code and the year of birth, data that are transmitted to STATEC, could allow for the indirect identification of a person in specific cases.

37. Under the principle of minimization, provided for in Article 5.1.e) of the GDPR, personal data must be limited to what is necessary in relation to the purposes for which they are processed. According to the aforementioned Regulation (EU) 692/2011, only the country or geographical area of residence of the visitor should be transmitted to the CNPD.

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European Commission (EUROSTAT). 16 Indeed, the aforementioned regulation does not mention the postal code, which constitutes a much more precise data point than the mere indication of the country or geographical area. Furthermore, the CNPD understands that the aforementioned regulation provides that sociodemographic breakdowns must be transmitted to the European Commission (EUROSTAT), including age groups. 17

Therefore, the National Commission believes that it would be appropriate to decrease the granularity of the data transmitted to STATEC, that is to say, to make the information transmitted to STATEC more general, in order to exclude any risk of re-identification of the individuals concerned. In this regard, the National Commission proposes to substitute the postal code with the country or geographical area and to substitute the year of birth with age groups. Thus adopted in Belvaux on March 29, 2024.

The National Commission for Data Protection

^^ UfW^J

Tine A. Larsen

President

Marc Lemmer

Commissioner

Alain Herrmann

Commissioner

16 According to section 3 of Annex I of Regulation (EU) 692/2011: "The categories to be used for the country or geographical area of residence of clients staying in tourist accommodation are as follows: European Union (Union), to be reported separately: each Member State, European Free Trade Association (EFTA) to be reported separately: Iceland, Norway, and Switzerland (including Liechtenstein), other European countries (outside the Union or EFTA; Russia, Turkey, and Ukraine, not included), Russia, Turkey, Ukraine, Africa; to be reported separately: South Africa, North America;

to be reported separately: United States of America and Canada, Latin America and Central America; to be reported separately: Brazil, Asia; to be reported separately: People's Republic of China, Japan, and Republic of Korea, Australia, Oceania, and other territories; to be reported separately: Australia."

17 According to section 1 of Annex II of Regulation (EU) 692/2011: "Age group: under 15 years [optional], 15-24, 25-34, 35-44, 45-54, 55-64 years, 65 years or older, with subtotals for age groups 25-44 and 45-64 years."

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